LETTER TO THE HONORABLE WILLIAM F. KNOWLAND,

CONCERNING CHINESE SITUATION.

The Waldorf-Astoria Towers
New York 22, New York
December 31, 1949

My dear Senator:

I do not think there is any purpose in my letter of today of introducing an argument in it as to the legal situation of Formosa. You might, however, think over an argument that could be made; namely, that Formosa and the Pescadores are still in MacArthur's jurisdiction. The Japanese acquired them from China in 1895. In subsequent years, we frequently ratified the status quo of their possessions.

The Cairo declaration and the Potsdam surrender were executive acts which were never matters of treaties ratified by the Senate. Such a ratification would only come up in a treaty with Japan, and MacArthur might collaterally hold them pending a treaty.

I enclose a note on these matters.

Yours faithfully,

/s/ HERBERT HOOVER

Honorable William F. Knowland
United States Senate
Washington, D. C.

Re: FORMOSA

A. Background of Japan -- Formosa relationship.

By the Treaty of Shimonoseki, signed April 17, 1895 by Japanese Count Ito and Li Hung-chang, Chinese ambassador extraordinary, China recognized the full independence of Korea and ceded to Japan the Pescadores, Formosa and the Liaotung Peninsula, paid an indemnity to Japan and negotiated a new commercial treaty.

Recognition took place, in effect, by the United States in the Root-Takahira Agreement of November 30, 1908, and the Lansing-Ishii agreement of November 2, 1917. Both agreements proposed to "maintain the status quo", and by acquiescence, therefore, recognized Japan's position in Formosa.

B. Published documents of World War II do not mention Formosa until the Cairo Declaration.

(1) Cairo Declaration, December 1, 1943

> ... Japan shall be stripped of all the islands in the Pacific which she has seized or occupied since the beginning of the first World War in 1914, and ... all the territories Japan has stolen from the Chinese,

such as Manchuria, Formosa, and the Pescadores, shall be restored to the Republic of China ....

(2) Formose was not mentioned in the official Protocol of Teheren or Yalta.

(3) Potsdam Ultimatum, July 26, 1945: Point 8.

"The terms of the Cairo Declaration shall be carried out and Japanese sovereignty shall be limited to the islands of Honshu, Hokkaido, Kyushu, Shikoku and such minor islands as we determine."

(4) Statement of White House on occupation policy in Japan, September 22, 1945:

" ... Japan's sovereignty will be limited to the islands of Honshu, Hokkaido, Kyushu, Shikoku and such minor outlying islands or may be determined, in accordance with the Cairo Declaration and other agreements to which the United States is or may be a party."

C. Geographic and ethnic makeup of Formosa.

(1) Off the Southeast coast of China, the island has an area of about 14,000 square miles.

(2) Population in 1940 was 6,000,000; of which 91.5% were Formosan Chinese; 6% were Japanese; and 2.5% were aborigines.

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